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News & Notes - Yet more sleaze-mail and sleazy local politics; get ready for Greek discipline; and the Express rakes in a few.

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NAMBLA in the house? In the battle over Oakland's Measure EE -- the "Just Cause" ballot initiative that would prohibit landlords from arbitrarily evicting tenants and raising the rent sky-high for their replacements -- guess which side jumped into the gutter first? Okay, we'll just go ahead and tell you: It's the landlords.

That's right, an anti-Just Cause group calling itself Oaklanders for Safe Neighborhoods has released the first direct-mail hit piece of the season, and it's a doozy. In addition to falsely claiming that Mayor Jerry Brown opposes the ballot measure (in fact, Hizzoner has taken no official stance on the issue), the mailer suggests that if the voters pass Just Cause, the entire membership of the North American Man-Boy Love Association will soon be moving into town, or something like that. Our very own tough-talkin' port city will soon become a sexual predator's paradise, all thanks to those commies backing Just Cause.

Here's the actual text: "You live in a quiet neighborhood in Oakland," the group's mailer states. "Next door is a rental unit. Without approval of the owner, the tenant sublets his apartment to a convicted sex offender. There is nothing the owner of the property, you, or the neighbors can do about it. Measure EE prohibits eviction of the sex offender."

Get it? If Measure EE passes, lock up your children, or it's thirty years of therapy bills for ya.

Who, exactly, are these Oaklanders for Safe Neighborhoods? You don't think they could be a front for real-estate interests, do you? Matter of fact ... according to its campaign filings, the organization has amassed a war chest of $128,000, and that money came from landlord after landlord -- sixty pages worth of 'em, which caused our fax machine to run out of paper.

Plucking five names somewhat randomly off this hefty list yielded the following: Mekong Realty and Mortgage; Piedmont Properties; Northgate Manor Apartments; Ellwood Commercial Real Estate; and a charming business calling itself "The Evictors," which donated $100. Unfortunately, these Evictors don't have an answering machine, so we couldn't leave a message seeking comment for the story. But we're pretty sure we know what line of business they're in. -- Chris Thompson

Muddying the playing field: Berkeley mayoral wannabe Tom Bates says he wants to restore civility to the cantankerous city council and he's adopted the catchy, if curious, campaign slogan, "Berkeley at its best." If Bates hopes to restore civility to city government, let's hope he's not using his current dogfight with incumbent mayor Shirley Dean as a model.

Readers of 7 Days will recall that Bates' proxies recently filed complaints against Dean with the city's Fair Campaign Practices Commission. In spite of the fact that they were highly technical accounting violations at worst, Bates managed to get a Tom-friendly commission on his side, resulting in a too-good-to-be-true headline in the Daily Planet, "Mayor broke campaign laws."

Well the mayor didn't earn the nickname Shirley Mean for nothing. This week, the Dean campaign sent out a press release with the headline "Bates broke campaign laws." In this case, a Dean-backer filed a trite complaint against Bates with the city's Fair Campaign Practices Commission for accepting illegally high donations from four different people, amounting to a whopping $1,000 in ill-gotten campaign dough. "Just last month, Bates' treasurer filed complaints against the mayor saying that technical errors in the mayor's reports on contributions received in 1998 and 1999 were jeopardizing the possibility of a 'level playing field' in this year's race," says Dean campaign

manager Bryan Schwartz. "It's shocking that barely a week later that same treasurer filed a report showing four violations far greater than those alleged against the mayor."

But the aforementioned Bates treasurer, Mal Burnstein, says the campaign hasn't accepted any individual donations above the $250 maximum. Burnstein blamed a computer glitch for mistakenly listing some folks as having donated $500 apiece.

The real import of the latest complaint is how the Fair Campaign Practices Commission, a nine-member body made up of political appointees with a progressive Bates-inclined majority, deals with it. As mentioned in this space before, the commission has generally managed to avoid taking sides in campaign pissing matches. In order to appear fair and nonpartisan, commissioners are now going to be under pressure to take up the latest complaint as quickly as they weighed in on the previous one against Dean. "We hope the complaint against Bates will be dealt with with the same urgency as the one against the mayor," says Schwartz.

The campaign manager insists this isn't a tit-for-tat gripe, because the complaint wasn't filed by the Dean campaign. The complainant is a "citizen" named Marie Bowman -- albeit a "citizen" who probably won't be voting for Tom Bates, Schwartz allows.

Ah, yes -- Berkeley at its best. -- Will Harper

My big fat Greek committee: More bad news for the Wheeler 33, the group of Cal students facing disciplinary charges for occupying the lobby of Wheeler Hall to protest the Israeli occupation of Palestinian land. According to the Daily Californian, Jesse Gabriel, president of the Associated Students of the University of California, submitted a list of twelve nominees for the Committee on Student Conduct, which reviews misconduct charges against students. And all Gabriel's nominees have something in common: They're members of a fraternity or a sorority.

ASUC senators are now raising hell over Gabriel's apparent effort to stack the court with frat boys, some of whom may be sitting in judgment of the Wheeler occupiers. Gabriel, who didn't return phone calls, told the Daily Cal that he just didn't have time to do a more thorough job of reaching out past the Greek system. (Maybe he drew up the list during a kegger.)

But fortunately for the accused activists, their lawyer knows a bit about protesting on campus. Dan Siegel, who takes cases when he's not too busy serving on the Oakland School Board and butting heads with the mayor, was a student at the Boalt School of Law in 1969 as an impasse over People's Park reached the boiling point. As thousands of students and radicals massed in Cal's Sproul Plaza, Siegel gave a firebrand speech that concluded with the exhortation, "Let's take the park!" That's the point at which the campus cops chose to pull the plug on the PA system, and the crowd, thinking that Siegel had just given them marching orders rather than making the rhetorical point he had intended, proceeded to march down Telegraph Avenue and into history.

Two hours later, tear gas was wafting through the streets, the National Guard was en route, and student James Rector lay in a pool of blood, dead at the hands of Alameda County sheriffs' deputies.

Note to UC administrators: Never interrupt Dan Siegel when he's making a point. You never know what might happen. -- Chris Thompson

Let's take the prize: The Express has won three 2002 awards from the Northern California Chapter of the Society of Professional Journalists, one of only four news organizations to win awards in more than one category.

Staff writer Will Harper won an In-Depth Reporting Award for his story of how an elderly Oakland woman lost her home to medical-related fraud (Someone to Watch Over Me). Staff writer Justin Berton won a Feature-Writing Award for his story about a Walnut Creek skateboarder's efforts to attract press coverage attention at any cost (Skateboard Rules [for the New Economy]). Staff writer Kara Platoni won an Outstanding Young Journalist Award for a body of work that included her coverage of the Oakland Zoo's baby elephant (Death in the Family) , the California Department of Managed Care (Critical Condition), and National Novel Writing Month (It Was a Dark and Stormy

Month).

The other multiple award winners were the San Francisco Chronicle, the San Jose Mercury News, and CNET.

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